

NCRWC AND WORKING OF THE CONSTITUTION

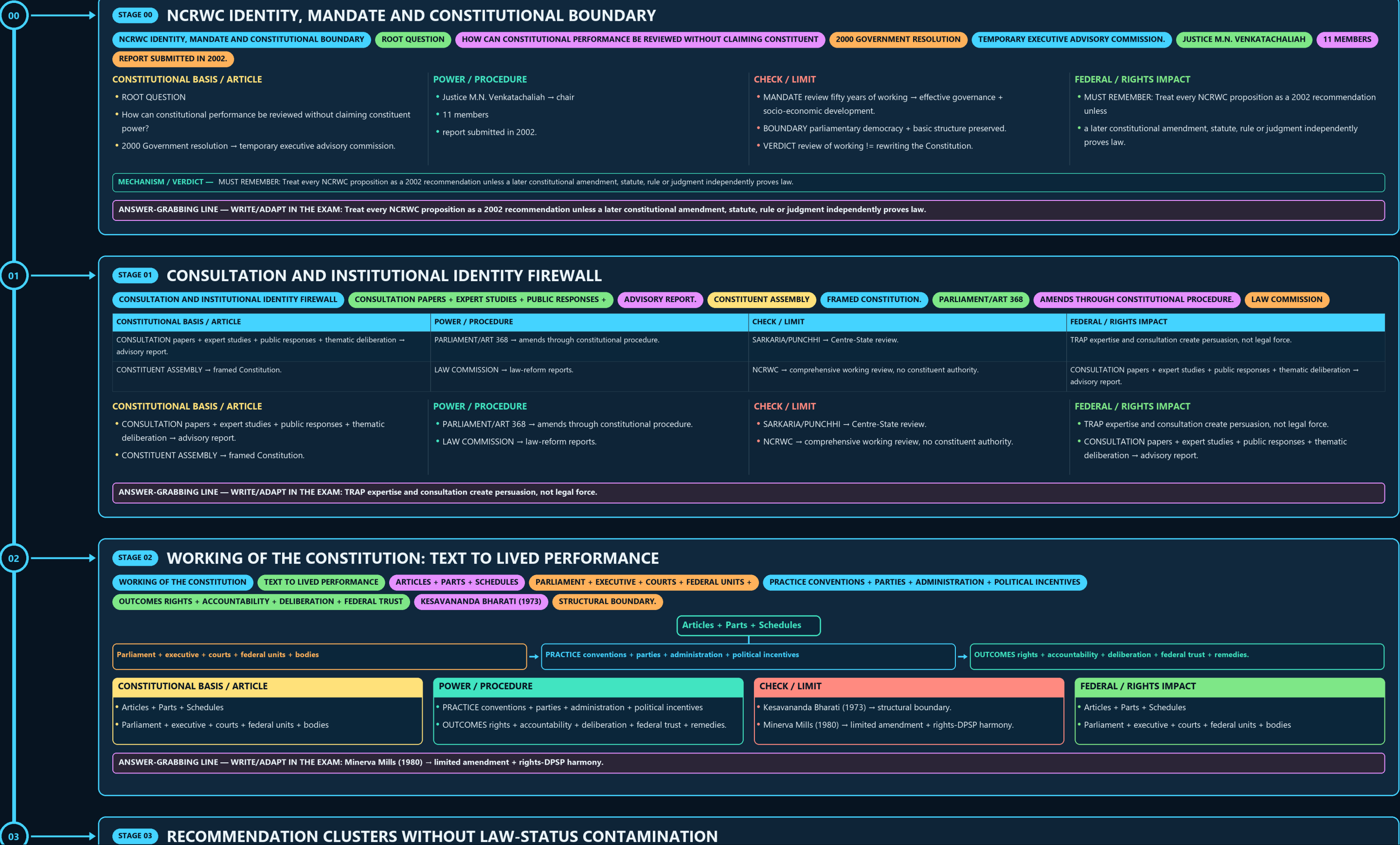
NCRWC IDENTITY, MANDATE AND → CONSULTATION AND INSTITUTIONAL IDENTITY → WORKING OF THE CONSTITUTION → RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS → IMPLEMENTATION AUDIT: EXACT, MODIFIED → ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g5 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



WORKING OF THE CONSTITUTION: TEXT TO LIVED PERFORMANCE

WORKING OF THE CONSTITUTION

TEXT TO LIVED PERFORMANCE

ARTICLES + PARTS + SCHEDULES

PARLIAMENT + EXECUTIVE + COURTS + FEDERAL UNITS +

PRACTICE CONVENTIONS + PARTIES + ADMINISTRATION + POLITICAL INCENTIVES

OUTCOMES RIGHTS + ACCOUNTABILITY + DELIBERATION + FEDERAL TRUST

KESAVANANDA BHARATI (1973)

STRUCTURAL BOUNDARY.

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies

PRACTICE conventions + parties + administration + political incentives

OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CONSTITUTIONAL BASIS / ARTICLE

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies

POWER / PROCEDURE

PRACTICE conventions + parties + administration + political incentives

OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CHECK / LIMIT

Kesavananda Bharati (1973) → structural boundary.

Minerva Mills (1980) → limited amendment + rights-DPSP harmony.

FEDERAL / RIGHTS IMPACT

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Minerva Mills (1980) → limited amendment + rights-DPSP harmony.

03

STAGE 03

RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION

RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION

DUTIES NEW RIGHTS, STRONGER IMPLEMENTATION AND PROPOSED DUTIES.

PARTIES CRIMINALISATION, FINANCE, ECI SELECTION, PARTY LAW AND ANTI-DEFECTION.

ADMINISTRATION SITTINGS, COMMITTEES, PRIVILEGES, MINISTRY SIZE, CIVIL SERVICES AND

LOCAL GOVERNMENT APPOINTMENTS, ACCESS, GOVERNOR, ART 356, COUNCILS AND

STATUS EVERY NODE

NCRWC RECOMMENDATION UNTIL SEPARATELY ENACTED.

CONSTITUTIONAL BASIS / ARTICLE

RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

POWER / PROCEDURE

PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.

CHECK / LIMIT

STATUS every node = NCRWC recommendation until separately enacted.

RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

FEDERAL / RIGHTS IMPACT

ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

CONSTITUTIONAL BASIS / ARTICLE

RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

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POWER / PROCEDURE

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FEDERAL / RIGHTS IMPACT

ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS every node = NCRWC recommendation until separately enacted.

04

STAGE 04

IMPLEMENTATION AUDIT: EXACT, MODIFIED, SIMILAR OR PENDING

IMPLEMENTATION AUDIT

EXACT, MODIFIED, SIMILAR OR PENDING

LATER INSTRUMENT

LEGAL EFFECT

10% MINISTRY CEILING

91ST AMENDMENT (2003) USES 15%

MODIFIED RELATED REFORM, NOT EXACT ADOPTION.

JUDICIAL COMMISSION

PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT

10% ministry ceiling

91st Amendment (2003) uses 15% → modified related reform, not exact adoption.

judicial commission

CONSTITUTIONAL BASIS / ARTICLE

PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT

10% ministry ceiling

91st Amendment (2003) uses 15% → modified related reform, not exact adoption.

POWER / PROCEDURE

judicial commission

NJAC enacted 2014, invalidated 2015 → not current NCRWC design.

party law + narrow whip

CHECK / LIMIT

no comprehensive enactment → substantially pending.

disaster to Concurrent List

Disaster Management Act 2005, no List transfer → statutory response, not adoption.

FEDERAL / RIGHTS IMPACT

RULE chronology + similarity != proven implementation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT.

05

STAGE 05

ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY ELECTIONS

JUDICIAL REVIEW.

LEGISLATURE SITTING TIME

DELEGATED LAW

FINANCIAL CONTROL.

FEDERAL PRACTICE CONSULTATION

GOVERNOR RESTRAINT

ACCOUNTABILITY elections

judicial review.

LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control.

FEDERAL PRACTICE consultation → councils → Governor restraint → floor test → negotiated implementation.

CONSTITUTIONAL BASIS / ARTICLE

ACCOUNTABILITY elections

POWER / PROCEDURE

LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control.

CHECK / LIMIT

S.P. Bhatnagar (1994) → federal and central structural reform.

FEDERAL / RIGHTS IMPACT

A CLOSE DISTINCTION: Courts constitutional and institutional capacity.

NCRWC AND WORKING OF THE CONSTITUTION • TILE 2/5 • same master rows 2327-5561 of 12542 • continues below

- ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT.**

GOVERNOR RESTRAINT

→ **FEDERAL PRACTICE** consultation → councils → Governor restraint → floor test → negotiated implementation.

- **CLOSE DISTINCTION:** Separate constitutional text, institutional capacity, conventions, party practice, federal trust, rights outcomes and effective remedies.
- **ACCOUNTABILITY** elections

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP majority strength or coalition form does not itself prove good constitutional working.

LIMIT MORALITY IS NOT PERSONAL PREFERENCE; LATER CASES ARE

→ RIGHTS WORKING guarantee → institution → affordable remedy → compliance → public justification.

- K.S. Puttaswamy (2017) privacy + dignity in modern governance.
- Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT morality is not personal preference; later cases are not NCRWC implementation evidence.

VERDICT USE THE LEAST LEGALLY SUFFICIENT AND INSTITUTIONALLY WORKABLE

→ TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.

- practice/convention repair executive rule or capacity ordinary legislation
- Article 368 amendment

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT use the least legally sufficient and institutionally workable route.

07

STAGE 07

REFORM-METHOD LADDER AND FEASIBILITY TEST

REFORM-METHOD LADDER AND FEASIBILITY TEST

DIAGNOSE TEXT GAP? CONVENTION FAILURE? CAPACITY DEFICIT? INCENTIVE FAILURE?

PRACTICE/CONVENTION REPAIR EXECUTIVE RULE OR CAPACITY ORDINARY LEGISLATION

ARTICLE 368 AMENDMENT

TEST BASIC STRUCTURE + RIGHTS + FEDERALISM + DEMOCRATIC

VERDICT USE THE LEAST LEGALLY SUFFICIENT AND INSTITUTIONALLY WORKABLE

DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?

practice/convention repair executive rule or capacity ordinary legislation

Article 368 amendment

TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT use the least legally sufficient and institutionally workable route.

08

STAGE 08

VERIFIED PROVENANCE AND ELEVEN-MEMBER COMPOSITION

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22 FEBRUARY 2000

GOVERNMENT RESOLUTION CONSTITUTES NCRWC.

CHAIR + INITIAL MEMBERSHIP

M.N. VENKATACHALIAH + TEN MEMBERS

ELEVEN; P.A. SANGMA LATER RESIGNED.

SECRETARY RAGHBIR SINGH WAS NOT A COMMISSION MEMBER.

11 MARCH 2002

22 FEBRUARY 2000

Government resolution constitutes NCRWC.

CHAIR + INITIAL MEMBERSHIP

M.N. Venkatachaliah + ten members = eleven; P.A. Sangma later resigned.

Secretary Raghbir Singh was not a Commission member.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Executive origin + expert composition produced advice, not constituent authority.

09

STAGE 09

RECOMMENDATION METRICS AND EXACT HIGH-YIELD PROPOSALS

RECOMMENDATION METRICS AND EXACT HIGH-YIELD PROPOSALS

249 RECOMMENDATIONS

58 CONSTITUTIONAL AMENDMENT

86 LEGISLATION

105 EXECUTIVE ACTION.

LS 120 DAYS

RS 100

STATE HOUSES 90 OR 50.

58 constitutional amendment	86 legislation	105 executive action.	
LS 120 days	RS 100	State Houses 90 or 50.	
GOVERNMENT constructive no-confidence	20% notice	alternative leader	10% ministry ceiling.
HC age 65	SC age 68	Governor about 6 months	President about 3 months.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Each number is a report proposal unless a later legal instrument is separately proved.

10

STAGE 10

PERFORMANCE DASHBOARD AND EXECUTABLE ANSWER AUDIT

PERFORMANCE DASHBOARD AND EXECUTABLE ANSWER AUDIT

PERFORMANCE DASHBOARD

SITTINGS + SCRUTINY + FINANCE + DEBATE.

RESPONSIBILITY + LEGALITY + TRANSPARENCY + DELIVERY.

ACCESS + INDEPENDENCE + PENDENCY + ACCOUNTABILITY.

CONSULTATION + FISCAL TRUST + RESTRAINT + DISPUTE RESOLUTION.

LOCAL GOVERNMENT

FUNCTIONS + FUNDS + FUNCTIONARIES.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
PERFORMANCE DASHBOARD	Executive → responsibility + legality + transparency + delivery.	Federalism → consultation + fiscal trust + restraint + dispute resolution.	Rights → affordable remedy + compliance + equal citizenship.
Legislature → sittings + scrutiny + finance + debate.	Judiciary → access + independence + pendency + accountability.	Local government → functions + funds + functionaries.	ANSWER EXECUTION identify demand → recommendation → route → current status → feasibility → graded verdict.

- 58 constitutional amendment
- 86 legislation
- 105 executive action.
- LS 120 days

- State Houses 90 or 50.
- GOVERNMENT constructive no-confidence
- 20% notice
- alternative leader

- JUDICIARY / FEDERALISM
- HC age 65
- SC age 68
- Governor about 6 months

- Each number is a report proposal unless a later legal instrument is separately proved.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Each number is a report proposal unless a later legal instrument is separately proved.

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STAGE 10

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FUNCTIONS + FUNDS + FUNCTIONARIES.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
PERFORMANCE DASHBOARD	Executive → responsibility + legality + transparency + delivery.	Federalism → consultation + fiscal trust + restraint + dispute resolution.	Rights → affordable remedy + compliance + equal citizenship.
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CONSTITUTIONAL BASIS / ARTICLE

- PERFORMANCE DASHBOARD
- Legislature → sittings + scrutiny + finance + debate.

POWER / PROCEDURE

- Executive → responsibility + legality + transparency + delivery.
- Judiciary → access + independence + pendency + accountability.

CHECK / LIMIT

- Federalism → consultation + fiscal trust + restraint + dispute resolution.
- Local government → functions + funds + functionaries.

FEDERAL / RIGHTS IMPACT

- Rights → affordable remedy + compliance + equal citizenship.
- ANSWER EXECUTION identify demand → recommendation → route → current status → feasibility → graded verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANSWER EXECUTION identify demand → recommendation → route → current status → feasibility → graded verdict.

11

STAGE 11

UPSC SYNTHESIS: COMMISSION REPORT TO CONSTITUTIONAL ANSWER

UPSC SYNTHESIS

COMMISSION REPORT TO CONSTITUTIONAL ANSWER

PRELIMS FIREWALL

2000 RESOLUTION

11 MEMBERS

2002 REPORT ADVISORY

REVIEW, NOT REWRITE

RECOMMENDATIONS, NOT LAW.

PRELIMS FIREWALL

→

2000 resolution

→

11 members

→

2002 report advisory

→

review, not rewrite

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• PRELIMS FIREWALL • 2000 resolution • 11 members • 2002 report advisory • review, not rewrite	• recommendations, not law. • MAINS SPINE identity → mandate → working beyond text → recommendation clusters • implementation audit → morality/accountability/federal practice → reform ladder. • PYQ ROUTE constitutional morality • electoral reform	• judicial accountability • basic structure. • NCRWC is a diagnostic reform menu subject to constitutional route and present-law verification. • CURRENT CONTROL: 5 SEPTEMBER 2026 • The official NCRWC report remains advisory. A later amendment, Act, rule, judgment or executive instrument must independently prove law	• similarity and chronology do not prove implementation. • LEGAL/SOURCE LIMIT: The official NCRWC report remains advisory • resemblance, chronology or shared policy language does not prove implementation or causation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The official NCRWC report remains advisory. A later amendment, Act, rule, judgment or executive instrument must independently prove law;.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

INSTITUTIONAL-PERFORMANCE FRAMEWORK

REFORM SEQUENCING AND IMPLEMENTATION CAUSATION

CONSTITUTIONAL MAINTENANCE VERSUS CONSTITUTIONAL REPLACEMENT

COMPARATIVE EVALUATION

THE CORE INDEPENDENTLY SUPPLIES IDENTITY, MANDATE, EXACT RECOMMENDATION ANCHORS

USE ONLY AFTER THE COMPLETE CORE.

RECOMMENDATIONS REMAIN NON-BINDING UNLESS A LATER LEGAL INSTRUMENT IS

OPTIONAL DOCTRINE / CASE	ADVANCED LIMIT	COMPARATIVE NUANCE
• Institutional-performance framework • Reform sequencing and implementation causation • Constitutional maintenance versus constitutional replacement • Comparative evaluation	• Firewall: The Core independently supplies identity, mandate, exact recommendation anchors, implementation auditing, evaluation and answer execution. • Use only after the complete Core. • Recommendations remain non-binding unless a later legal instrument is separately identified. • Institutional-performance framework Constitutional working can be evaluated through four linked capacities: Capacity	• Question Evidence route --- --- Authorisation Is the actor constitutionally empowered? • text, statute, rule Restraint Are rights, federalism and role limits respected? • reasons, review, conventions Delivery Can the institution convert authority into timely outcomes? • staffing, procedure, finance Correction Can failure be exposed and remedied?

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.